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#19 - ANI VERDYAN vs EDGAR SARGSYAN, et al.

Defendant Artur Grigoryan, dba Khinkali House Restaurant, demurs to Plaintiff Ani Verdiyan's eighth cause of action in her First Amended Complaint on the grounds that the claim fails to sufficiently plead facts with the requisite particularity and is uncertain.

The necessary

elements for fraudulent transfer under Civil Code section 3439.04, subdivision

(a)(1) are: (1) a transfer made or obligation incurred by a debtor; (2) with

actual intent to hinder, delay, or defraud any creditor of debtor; and (3)

injury to the creditor. (Civ. Code, §§ 3439.04, subd. (a), 3439.05; see also *Kirkeby*

v. Superior Court (2004) 33 Cal.4th 642, 651 [fraudulent

transfer sufficiently alleged based on defendant's transfer of property with

intent to defraud, hinder or delay creditors in collection].) Under Civil Code

section 3439.05, a plaintiff needs to allege: (1) a transfer made or obligation

incurred by a debtor; (2) without receiving a reasonably equivalent value; and

(3) the debtor was insolvent or became insolvent as a result. Additionally, any

action sounding in fraud must be pleaded with particularity; "[a]llegations of

the defendant's knowledge and intent to deceive may use conclusive language,

however." (*City of Pomona v. Superior Court* (2001) 89 Cal.App.4th 793,

803 [False Claims Act decision].)

Here, Plaintiff sufficiently pleads actual intent as required by Civil Code section 3439.04, subdivision (a)(1). In *Aghaian v.*

Minassian (2020) 59 Cal.App.5th 447, 456, the court found that plaintiffs

sufficiently pleaded facts constituting a cause of action under section

3439.04, subdivision (a)(1), because the complaint alleged that defendant made

the subject transfers with an actual intent to hinder, delay or defraud any

creditor of the debtor, within the meaning of the UVTA, and alleged with

particularity the existence of several badges of fraud: Shahan made the

transfers to an insider, namely, his wife Alice and his son Arthur; he retained control of the two properties after the transfers; the plaintiffs had sued Shahren before he made the transfers; and Shahren did not receive reasonably equivalent value from Alice for his transfer of the two properties. Here, Plaintiff similarly alleges that the “transfer was made with actual intent to hinder, delay, or defraud Plaintiff and other creditors” and “without receiving reasonably equivalent value in exchange.” (FAC ¶¶ 29-30, 90-91.) In addition, the FAC alleges the existence of statutory “badges of fraud,” including that the Entity Defendants transferred “substantially all the debtor’s assets” to Defendant, lack of reasonably equivalent value, insolvency, and timing. (FAC ¶¶ 89-93; Civ. Code § 3439.04, subd. (b).) Per the plain language of the statute, there is no minimum or maximum number of “badges” needed for a sufficient pleading at the demurrer stage. (Civ. Code, § 3439.04, subd. (b); Aghaian, supra, 59 Cal.App.5th at p. 456.)

The Court also notes that the statute allows for future creditor claims, as well. (Civ. Code, § 3439.04, subd. (a) [“A transfer made or obligation incurred by a debtor is voidable as to a creditor, whether the creditor’s claim arose before or after the transfer was made or the obligation was incurred.”].)

The FAC also sufficiently pleads constructive fraud under Civil Code section 3439.05 at the demurrer stage. Intent is not required under section 3439.05. Plaintiff sufficiently pleads that the Entity Defendants transferred the property “without receiving a reasonably equivalent value in exchange” and that the Entity Defendants became insolvent or the transfer increased their insolvency. (FAC ¶¶ 29, 87, 90-93; Civ. Code, § 3439.05.)

As to Defendant’s argument that the FAC fails to plead Defendant’s actual or constructive knowledge of the alleged fraud, the Court finds this argument unpersuasive and misplaced. Knowledge speaks to the transferee’s “good faith,” which is an affirmative defense that Defendant bears the burden of proving. (Civ. Code, § 3439.08.)

Defendant Artur

Grigoryan's, dba Khinkali House Restaurant, demurrer to Plaintiff Ani

Verdiyan's eighth cause of action in her First Amended Complaint is OVERRULED. Defendant is to answer within 10 days.

Court is to give notice.